

24NWCV00372 24NWCV00372

County: los-angeles

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Case Number: 24NWCV00372 Hearing Date: August 13, 2026 Dept: P

JAIME ROBLES, ET AL. v.

PIH HEALTH WHITTIER, ET AL.

CASE NO.: 24NWCV00372

HEARING: 08/13/2026 @

9:30 AM

#6

TENTATIVE ORDER

Petitioner Ethmeshell Escobar's petition for approval of compromise of action is GRANTED.

Moving party to give notice.

Petitioner Ethmeshell Escobar (Petitioner) moves for approval of compromise of action.

Background

On February 1, 2024, Plaintiffs Jaime Robles (Claimant), a minor, by and through his Guardian Ad Litem, Ethmeshell Escobar; Ethmeshell Escobar, individually; and Rogelio Robles, individually (collectively, Plaintiffs) filed this medical malpractice action against Defendants PIH Health Whittier Hospital; PIH Health Women's Center; Brent James Gray, M.D.; Jung M. Park, M.D.; John H. Sanchez, M.D.; Leslie M. Gonzalez, M.D.; and Does 1 to 250

(Defendants). The complaint alleges Defendants were negligent in the labor and delivery of Jamie Robles including “negligent failure to provide informed consent,...negligent failure to timely anesthetize, deliver, treat and care for minor Plaintiff’s intolerance of labor, as well as fetal distress causing profound neurological and bodily injuries” to Jamie Robles. (Complaint, ¶¶ 17-20.) The complaint also alleges Defendants were negligent in ignoring Ethmeshell Escobar’s requests for a cesarean section resulting in a delay in delivering Jamie Robles. (Complaint, ¶ 29.)

The complaint asserts four causes of action: (1) negligence as to Jamie Robles, (2) negligence as to Ethmeshell Escobar, (3) negligent infliction of emotional distress, and (4) loss of consortium.

On February 21, 2025, Plaintiffs filed Requests for Dismissal as to Jung M. Park, M.D. and John H. Sanchez, M.D. On July 21, 2025, Plaintiffs filed a Request for Dismissal as to Leslie M. Gonzalez, M.D.

On December 10, 2025, Plaintiffs filed a Notice of Settlement of Entire Case.

Legal Standard

A Petition for Compromise of Disputed Claim of Minor must conform with Code of Civil Procedure section 372 and Probate Code sections 2504 and 3600 et seq. Such a petition “must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise.” (Cal. Rules of Court, rule 7.950.) Moving papers should include the Petition of Guardian Ad Litem for Compromise of Disputed Claim of Minor (Petition) on Form MC-350 and an Order Approving Compromise of Minor’s Claim (Order) Form MC-351.

Discussion

Petitioner files this Petition on behalf of Claimant, a minor, age three, to approve this settlement. Petitioner provides a Petition on Form MC-350 and Proposed Order on Form MC-351. This Petition is unopposed.

Allocation

PIH Health Whittier Hospital will pay \$100,000 and Brent

James Gray, M.D. will pay \$400,000 to Plaintiffs in exchange for release of all claims, including wrongful death, Plaintiffs assert against them. (Pet., ¶ 10; Attach., 10c.) Of the total settlement proceeds, Defendants are paying \$100,000 to Petitioner for her medical negligence and emotional distress claims, reflecting 20% of the total recovery. (Pet., ¶ 11.)

Claimant will receive \$251,354.14. (Pet., ¶ 16.)

Medical Expenses

The total medical expenses paid is \$195,569.62. (Pet., ¶ 12a.) The Petition indicates that none of the medical expenses will be reimbursed from the proceeds. (Pet., ¶ 12a.) The Petition also indicates that there are no statutory or contractual liens for payment of Claimant's medical expenses. (Pet., ¶ 12b.)

Attorney's Fees & Costs

The Petition seeks approval of \$123,801.30 in attorney's fees. (Pet., ¶ 13; Attach., 13a.) This represents 33%, as reflected in the retainer agreement signed by Petitioner. (Attach., 13b.) The Petition also seeks \$24,844.56 in litigation expenses as supported in a client cost ledger. (Pet., ¶ 13.) The Petition indicates that Plaintiff's counsel additionally expects to be paid \$33,000 by Petitioner. (Pet., ¶ 17f.)

Based on the declaration of counsel and information provided in this Petition, the Court finds this amount reasonable.

Disposition of Settlement Funds

The Petitioner requests that the disposition of the proceeds be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. Petitioner provides the terms of the annuity stating that Prudential Assigned Settlement Service Corp. will provide for the following Periodic Payments to be made by The Prudential Insurance Company of America, rated A+ by A.M. Best. (Attach., 18b(3).)

Additional

Orders

The Petition also requests that an annuity for the benefit of Jaime Robles in the amount of \$251,354.14 be promptly funded by Defendant Brent James Gray, M.D. with The Prudential Insurance Company of America, and that the balance of the settlement funds be paid within twenty days of Court approval of this Petition. Proof of Purchase of annuity to be filed with the Court thereafter.

Conclusion

Based on the foregoing, the Court finds the Petition fair and reasonable.

Petitioner Ethmeshell Escobar's petition for approval of minor's compromise is APPROVED. The Court will sign the Proposed Order concurrently filed with the Petition.